

Elections

Working draft. Not adopted law. Do not run an election on this text.

29 September 2026

In plain words

- Election day is fixed. Council can't move it.
- The electors pick the electoral officer, not council.
- Mail ballots go to anyone who asks, on or off reserve.
- Results posted within a day. Recount on request.
- Members can remove a chief or councillor with a petition and a vote.

Why this draft is here

The election rule decides who holds every other power. It has to be clear, fixed, and out of council's hands.

1. Purpose and authority

- 1.1 This code sets how the chief and councillors are elected and removed. It is a custom election code under Indian Act subsection 2(1), in the definition of council of the band, paragraph (d).
- 1.2 It does not apply if Indian Act section 74 applies, or if the First Nation takes part under the First Nations Elections Act. Those statutes would govern instead.
- 1.3 The election rule already in force governs until the electors replace it in the way that rule requires. This draft is not the current code.

2. Voters, candidates, and the day

- 2.1 Every elector votes for all five seats. Living on or off reserve does not affect the vote.
- 2.2 A candidate must be an elector and may run for only one seat in an election.
- 2.3 A person who is immediate family of the electoral officer may not run. The electoral officer must not serve if immediate family is running.
- 2.4 A chief or councillor who is convicted of an indictable offence and sentenced to more than 30 days in jail in a row stops holding office on the day of sentence. This is not a lifetime ban. The person may run again in a later election.
- 2.5 The term, the term limit, and the fixed election day are set in the constitution, Part 4. Council must not change them.
- 2.6 A person running for the off-reserve seat writes where they live on the nomination paper. If it says on reserve, the electoral officer rejects the nomination in writing within 2 days.
- 2.7 Any elector may challenge that address in writing within 5 days after the candidate list is posted. The electoral officer decides in writing within 5 days. The appeal body decides an appeal within 7 days.

- 2.8** When a seat becomes empty, the electoral officer posts that within 2 days. If more than 180 days remain before the next election day, the officer holds a by-election within 45 days, on 21 days' notice. If 180 days or fewer remain, the seat stays empty. Council must not appoint anyone to it. An appointment is void.

3. Electoral officer

- 3.1** The electors choose the electoral officer by a majority of votes cast, at least 90 days before election day, from a list the appeal body posts after a public call for applications.
- 3.2** The officer must not be a member of council, a candidate, an employee who reports to council, or immediate family of a candidate. The officer must have run at least one election before or completed election training.
- 3.3** Council must not appoint the electoral officer. A council appointment is void. If the electors have not chosen one by day 90, the appeal body appoints one within 14 days and posts the name the same day.
- 3.4** The officer controls the voters list, the ballots, the mail ballots, and the count. The officer can't be removed during an election except by the appeal body for a written reason.
- 3.5** Council must give the officer the Band List, a room, and the election budget within 7 days of appointment. If it does not, the officer posts that on day 8 and council honoraria stop until the list and money are provided.
- 3.6** The officer posts a notice of election at least 60 days before election day. It states the seats, the date, how to get a mail ballot, and the nomination deadline. It is mailed or emailed to every elector with a known address.

4. Nominations, ballots, and the count

- 4.1** Nominations close 30 days before election day at noon, local time. A nomination needs two electors other than the candidate, and the candidate's written consent. A late nomination is void.
- 4.2** The officer posts the candidate list within 2 days after nominations close.
- 4.3** The officer holds at least one all-candidates meeting, on reserve with an online option, at least 7 days before election day, records it, and posts the recording within 2 days.
- 4.4** Voting is by secret ballot. A mail ballot goes to every elector who asks in writing by 14 days before election day. The officer sends it within 3 days of the request. Mail ballots received by the close of the poll are counted.
- 4.5** No one may offer money, goods, work, or anything of value to influence a vote, and no elector may accept it. If the appeal body finds in writing that a candidate did this, the candidate is disqualified and may not run for 5 years. Criminal matters belong to the police.
- 4.6** The officer posts the count within 1 day after the poll closes. A tie is broken by a draw done by the officer in front of two electors who are not candidates, the same day, and written down.
- 4.7** A candidate may ask for a recount in writing within 5 days. The officer recounts within 5 days and posts the result the same day.
- 4.8** The officer keeps ballots sealed for 120 days, or until every dispute is finished, whichever is later.

5. Disputes

- 5.1 An elector may contest an election by written complaint to the appeal body within 14 days after the count is posted, on the ground that a breach of this code likely changed the result.
- 5.2 The appeal body decides in writing within 21 days. It may confirm the result or order a new election within 45 days. It must not seat a candidate who did not get the most votes.
- 5.3 This does not remove anyone's right to go to court. A judicial review in Federal Court must usually be filed within 30 days of the decision.

6. Removal by the electors

- 6.1 Electors may remove the chief or a councillor. They file a petition with the appeal body naming the seat, the rule broken, and the date. It needs original signatures from at least 40 percent of the electors.
- 6.2 The appeal body checks the names within 14 days and posts the count. A person who is not an elector, or who signed twice, is not counted.
- 6.3 If the petition has enough valid names, the electoral officer holds a vote with 30 days' notice and mail ballots for every elector. Council must not cancel, move, or cut the money for that vote. A resolution that tries to is void.
- 6.4 The person named may file a written reply within 14 days. The officer posts it within 2 days.
- 6.5 The person is removed if more than half of the ballots cast say yes and at least 25 percent of all electors cast a ballot. Removal takes effect at noon the next day. The empty seat is filled under Part 2.
- 6.6 The public notice states the rule and the count. It does not say the person committed a crime. This vote is not a court case.

7. Changing this code

- 7.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 7.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 7.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 7.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

8. Review and coming into force

- 8.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 8.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.

- 8.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 8.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 8.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.